

Whangarei District Council Meeting Minutes

Date: Thursday, 22 February, 2024

Time: 9:00 a.m.

Location: Civic Centre, Te Iwitahi, 9 Rust Avenue

In Attendance

His Worship the Mayor Vince Cocurullo

Cr Gavin Benney

Cr Nicholas Connop

Cr Ken Couper

Cr Jayne Golightly

Cr Phil Halse

Cr Deborah Harding

Cr Patrick Holmes

Cr Scott McKenzie

Cr Marie Olsen

Cr Carol Peters

Cr Simon Reid

Cr Phoenix Ruka

Cr Paul Yovich

Scribe

C Brindle (Senior Democracy Adviser)

1. Karakia/Prayer

Cr Deborah Harding opened the meeting with a karakia/prayer.

2. Declarations of Interest / Take Whaipanga

Item 7.2 – Airport Noise Management Committee Membership and Amendment to Terms of Reference.

3. Apologies / Kore Tae Mai

There were no apologies.

4. Public Forum / Huihuinga-a-tangata

Christopher Taplin – Kainga Ora's Social Housing development

Veronica Turketo – Kainga Ora's Social Housing development

Renee Poutai – The cost of living crisis and it's impact on ratepayers.

5. Police Report

5.1 Police Report

Moved By Cr Deborah Harding

Seconded By Cr Carol Peters

That Council note the report.

Carried

Cr Yovich was absent from the meeting from 9.53am to 9.55am during Item 5.1.

6. Confirmation of Minutes of Previous Meeting of the Whangarei District Council / Whakatau Meneti

6.1 Minutes Whangarei District Council Meeting held 21 December 2023

Moved By Cr Carol Peters

Seconded By Cr Phoenix Ruka

That the minutes of the Whangarei District Council meeting held Thursday 21 December 2023, including the confidential section, having been circulated, be now confirmed and adopted as a true and correct record of proceedings of that meeting.

Carried

7. Decision Reports / Whakatau Ripoata

7.1 LTP 2024-34 Decision to Proceed with Unaudited Consultation Document

Moved By His Worship the Mayor

Seconded By Cr Carol Peters

That the Council:

1. Proceeds with the Long Term Plan 2024-34 process on the basis that the Consultation Document will not be audited.
2. Notes that the source documents contributing to the Consultation Documents will, where possible, be reviewed by the Auditors prior to the Consultation Document being adopted.

Carried

Cr Halse requested his vote against be recorded.

7.2 Airport Noise Management Committee – Resignation of Committee Member and Amendment to Terms of Reference

Moved By His Worship the Mayor

Seconded By Cr Paul Yovich

That the Council:

1. Notes the report.
2. Amends the Airport Noise Management Committee Terms of Reference to provide for six monthly meetings, for a period of no less than 5 years after NEST relocates to the Airport.
3. Accepts the resignation of Jim Fernie and requests the Chairperson of the Airport Noise Management Committee write a letter of appreciation to Mr Fernie.
4. Notes the recommended Community Representative Member will be brought to a future Council meeting for appointment.

Carried

Declarations of Interest:

Cr Halse declared an interest as Chair of the Airport Noise Management Committee.

Cr's Connop and Olsen declared their interests as members of the Committee.

7.3 Animal Shelter Update

Moved By His Worship the Mayor

Seconded By Cr Nicholas Connop

That the Council:

1. Notes that while the Animal Shelter remains within the overall contract budget, additional works/scope are recommended to futureproof the building and reduce whole of life costs.
2. Notes that the additional works/scope can be funded from the existing project budget.
3. Approves a \$151,336.28 increase in the contract award value for CON22004 (for the construction of the New Animal Shelter), from \$5,325,795.64 to \$5,477,131.92.

Amendment

Moved By Cr Scott McKenzie

Seconded By Cr Marie Olsen

4. Request staff to investigate the possibility of any future savings to offset any increases in the project price.

On the amendment being put Cr Reid called for a division:

His Worship the Mayor	X
Cr Gavin Benney	X

Cr Nicholas Connop	X		
Cr Ken Couper	X		
Cr Jayne Golightly		X	
Cr Phil Halse		X	
Cr Deborah Harding	X		
Cr Patrick Holmes	X		
Cr Scott McKenzie	X		
Cr Marie Olsen	X		
Cr Carol Peters	X		
Cr Simon Reid		X	
Cr Phoenix Ruka	X		
Cr Paul Yovich		X	
Results	10	4	0

**The Amendment was Carried (10 to 4)
And subsequently Carried
As the substantive Motion**

Crs Golightly, Halse, Reid and Yovich requested their votes against the motion be recorded.

7.4 Temporary Road Closure - ANZAC Commemorations 2024

Moved By Cr Simon Reid

Seconded By Cr Carol Peters

That Whangarei District Council:

1. Approves the proposal to temporarily close the following roads to ordinary traffic for the ANZAC Commemorations on the following date in accordance with the Transport (Vehicular Traffic Road Closure) Regulations 1965.

Thursday 25th April 2024

Hannah Street, from Hannah Street/Carruth Street intersection to Hannah Street/Reyburn Street intersection.

Walton Street, from the Pak n Save Carpark to the Walton Street/Cameron Street intersection.

Walton Street/Robert Street intersection (Corner of old ASB Bank & Old Army Hall).

Robert Street/John Street & Robert Street/James Street intersections.

Rathbone Street/Robert Street intersection on both sides of the road.

Laurie Hall Lane and Laurie Hall Park area from the Rathbone Street intersection.

Period of Closure: 4:30am to 9am

2. Approves the proposal to temporarily close the side roads off the roads to be closed for up to 100 meters from the intersection for safety purposes.
3. Delegates to the Chair of the Infrastructure Committee and General Manager Infrastructure the power to give public notice of these proposed temporary closures, to consider any objections and to either approve, cancel, or amend any or all of the temporary road closures if applicable.

Carried

Cr Benney was absent from 10.31am to 10.34am during Item 7.4.

7.5 Temporary Road Closure - NAZCAR Whangarei Street Sprint 2024

Moved By Cr Marie Olsen

Seconded By Cr Simon Reid

That Whangarei District Council:

1. Approves the temporary closure of the following roads to ordinary traffic for the NAZCAR Whangarei Street Sprint 2024 on the following dates in accordance with section 342 (1)(b) and Schedule 10 Clause 11 of the Local Government Act 1974.

Friday 5 April 2024 to Monday 8 April 2024

Railway Road, from Walton Street roundabout to the end of Railway Road at the Creative Northland/Men's shed carpark

Woods Road, from Railway Road to Albert Street

Albert Street, from Walton Street, past Clyde Street to Cameron Street

Cameron Street, from Walton Street to the Reyburn Street

Reyburn Street, from Cameron Street to the Reyburn Street/Port Road round about.

Hannah Street, from Walton Street to Reyburn Street

Carruth Street, from Hannah Street to the alleyway behind 104 Robert Street

Period of Closure: 5pm Friday 5 April to 6am Monday 8 April.

2. Approves the temporary closure of the side roads off the roads to be closed for up to 100 meters from the intersection for safety purposes.

3. Delegates to the Chair of the Infrastructure Committee and General Manager Infrastructure the power to give public notices of these temporary road closures.

Carried

7.6 Temporary Road Closure - Super Rugby Moana Pasifika v Queensland Reds

Moved By Cr Phil Halse

Seconded By Cr Deborah Harding

That Whangarei District Council,

1. Approves the proposal to temporarily close the following roads to ordinary traffic for the Super Rugby Moana Pasifika v Queensland Reds on the following date in accordance with the Transport (Vehicular Traffic Road Closure) Regulations 1965.

Saturday 13 April 2024

Okara Drive, from the roundabout at Okara Drive & Porowini Ave to the roundabout at Okara Drive & Port Road.

Period of Closure: 3pm to 10.30pm

2. Approves the proposal to temporarily close the side roads off the roads to be closed for up to 100 meters from the intersection for safety purposes.
3. Delegates to the Chair of the Infrastructure Committee and General Manager Infrastructure the power to give public notice of these proposed temporary closures, to consider any objections and to either approve, cancel or amend any or all of the temporary road closures if applicable.

Carried

Later in the meeting it was brought to the meetings attention that the date of the road closure was incorrect consequently the council sought to rescind the resolution adopted and resolve a new resolution with the correct date.

Motion to rescind

Moved By Cr Phil Halse

Seconded By Cr Deborah Harding

That the Council rescind the resolution to temporarily close the roads to ordinary traffic for the Super Rugby Moana vs Pasifika v Queensland Reds on the 'Saturday 13 April 2024'.

Carried

Motion

Moved By Cr Phil Halse

Seconded By Cr Deborah Harding

That Whangarei District Council,

1. Approves the proposal to temporarily close the following roads to ordinary traffic for the Super Rugby Moana Pasifika v Queensland Reds on the following date in accordance with the Transport (Vehicular Traffic Road Closure) Regulations 1965.

Friday 12 April 2024

Okara Drive, from the roundabout at Okara Drive & Porowini Ave to the roundabout at Okara Drive & Port Road.

Period of Closure: 3pm to 10.30pm

2. Approves the proposal to temporarily close the side roads off the roads to be closed for up to 100 meters from the intersection for safety purposes.
3. Delegates to the Chair of the Infrastructure Committee and General Manager Infrastructure the power to give public notice of these proposed temporary closures, to consider any objections and to either approve, cancel or amend any or all of the temporary road closures if applicable.

Carried

A short break was taken from 10.55am to 11.06am following Item 7.6.

7.7 Temporary Road Closure - A Taste Whangārei – A Multicultural Food Fair

Moved By Cr Carol Peters

Seconded By Cr Phoenix Ruka

That Whangarei District Council:

1. Approves the temporary closure of the following roads to ordinary traffic for the Taste Whangārei – A Multicultural Food Fair on the following date in accordance with section 342 (1)(b) and Schedule 10 Clause 11 of the Local Government Act 1974.

Thursday 21 March 2024

Cameron Street, from corner of John Street and Cameron Street to James Street.

James Street, from Cameron Street to Robert Street.

Period of Closure: 3pm to 10pm.

2. Approves the temporary closure of the side roads off the roads to be closed for up to 100 meters from the intersection for safety purposes.
3. Delegates to the Chair of the Infrastructure Committee and General Manager Infrastructure the power to give public notices of these temporary road closures.

Carried

7.8 Wharf Road Wharf Safety Improvements

Moved By Cr Patrick Holmes

Seconded By Cr Scott McKenzie

That the Council:

1. Approves unbudgeted capital expenditure to undertake safety improvements on the Wharf Road wharf up to a value of \$300,000 (ex GST) as part of Long Term Plan (LTP) Activity 00094 Coastal Structures Renewal.
2. Notes that subject to Council approval of budget, the Contract will be awarded under Chief Executive's delegation with works to commence as soon as practicably possible.

Carried

7.9 Whangarei Secure Bike Parking

Moved By Cr Gavin Benney

Seconded By Cr Scott McKenzie

That the Council resolves:

1. To endorse in principle the locations for secured bike parking in Whangarei City.
2. To approve the Private Public Partnership procurement option for implementation and management of secured bike parking in Whangarei City.
3. Delegate to Chief Executive (CE) to negotiate and sign the agreement between Council and Locky Dock for secured bike parking in Whangarei City.

Carried

His Worship the Mayor requested his vote against be recorded.

7.10 Port Nikau Joint Venture Development Agreement Request

Moved By Cr Patrick Holmes

Seconded By Cr Ken Couper

That the Council:

1. Notes the report of the Independent Facilitator.
2. Declines the request for a Development Agreement, with no further work being done.
3. Notes that staff from Infrastructure and the Northland Transportation Alliance (NTA) will continue to work with Port Nikau Joint Venture on the possibility of a separate Infrastructure Funding Agreement for areas of Port Road outside of the Port Nikau Development Area
4. Notes that Infrastructure staff will separately review additional information provided by Port Nikau Joint Venture in relation to the historic upgrade of the wastewater line and pump under the Logyard Rd consent.
5. Notes that while this decision does not preclude a further proposal, with any proposal being considered on its merits:
 - a. The requirements outlined within the Independent Facilitators report and this Agenda are likely to remain key considerations in any future Development Agreement request.
 - b. Any grant should be part of properly developed policy, with defined/contestable criteria.
6. Notes that a decision to approve the request in the current form could trigger Significance, including the need for consultation.

Amendment

Moved By Cr Simon Reid

Seconded By Cr Phoenix Ruka

That the Council:

1. Notes the report of the Independent Facilitator.
2. Declines this request for a Development Agreement.
3. Requests that staff from Infrastructure and the Northland Transportation Alliance (NTA) will continue to work with Port Nikau Joint Venture on the possibility of a separate Infrastructure Funding Agreement for areas of Port Road outside of the Port Nikau Development Area
4. Requests that Infrastructure staff will separately review additional information provided by Port Nikau Joint Venture in relation to the historic upgrade of the wastewater line and pump under the Logyard Rd consent.
5. Agrees this decision does not preclude a further proposal, with any proposal being considered on its merits:

- a. The requirements outlined within the Independent Facilitators report and this Agenda are likely to remain key considerations in any future Development Agreement request.
 - b. Any grant should be part of properly developed policy, with defined/contestable criteria.
6. Notes that a decision to approve the request in the current form could trigger Significance, including the need for consultation.

Carried

8. Information Reports / Ngā Pūrongo Kōrero

8.1 Decision made over the 2023-24 Christmas recess period

Moved By Cr Simon Reid

Seconded By Cr Nicholas Connop

That Council notes the decision made by the Chief Executive under delegation during the 2023-2024 Christmas recess period.

Carried

Crs Halse, Olsen and Yovich requested their votes against be recorded.

Secretarial Note: It was noted that the Mayor was also consulted on the decision made under delegation.

9. Public Excluded Business / Rāhui Tangata

Moved By Cr Carol Peters

Seconded By Cr Marie Olsen

That the public be excluded from the following parts of proceedings of this meeting. The general subject of each matter to be considered while the public is excluded, the reason for passing this resolution in relation to each matter, and the specific grounds under Section 48(1) of the Local Government Official Information and Meetings Act 1987 for the passing of this resolution are as follows:

General subject of each matter to be considered		Reason for passing this resolution in relation to each matter	Ground(s) under Section 48(1) for passing this resolution
1.1	Notice of Motion – Property Matter	Good reason to withhold information exists under Section 7 Local Government Official Information and Meetings Act 1987	Section 48(1)(a)
1.2	Legal Matter		
1.3	Confidential Minutes Whangarei District Council 21 December 2023		

This resolution is made in reliance on Section 48(1)(a) of the Local Government Official Information and Meetings Act 1987 and the particular interest or interests protected by Section 6 or Section 7 of that Act which would be prejudiced by the holding of the whole or the relevant part of the proceedings of the meeting in public, are as follows:

Item	Grounds	Section
1.	To enable Council to carry on without prejudice or disadvantage commercial activities To enable Council to carry on without prejudice or disadvantage negotiations (including commercial and industrial negotiations)	Section 7(2)(h) Section 7(2)(i)
1.2	To maintain legal professional privilege	Section 7(2)(g)
1.3	For the reasons as stated in the open minutes	

Carried

10. Closure of Meeting / Te katinga o te Hui

The meeting concluded at 12.37pm.

Confirmed this 28th day of March 2024

His Worship the Mayor Vince Cocurullo (Chairperson)